

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patricia de la Torre	Team: Team # 2	CCRB Case #: 200502435	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 03/03/2005 8:00 PM	Location of Incident: East 167 St. and Simpson St	Precinct: 41	18 Mo. SOL 9/3/2006	EO SOL 9/3/2006	
Date/Time CV Reported Fri, 03/04/2005 6:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/04/2005 6:50 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT Deodat Urprasad	00000	914030	041 PCT
2. POF Gwendolyn Corbalis	23484	929937	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Angel Vasquez	03533	918436	041 PCT
2. POM Stephen Nelson	27285	925824	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Deodat Urprasad	Abuse: Lieutenant Deodat Urprasad stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	
B.LT Deodat Urprasad	Force: Lieutenant Deodat Urprasad pointed his gun at § 87(2)(b)	
C.LT Deodat Urprasad	Discourtesy: Lieutenant Deodat Urprasad spoke obscenely and/or rudely to § 87(2)(b)	
D.POF Gwendolyn Corbalis	Abuse: Officer Gwendolyn Corbalis searched an individual known as § 87(2)(b)	
E.LT Deodat Urprasad	Abuse: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for disorderly conduct.	
F.LT Deodat Urprasad	Abuse: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for disorderly conduct.	
G.LT Deodat Urprasad	Abuse: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for possessing a knife longer than four inches.	
H.LT Deodat Urprasad	Abuse: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for reckless driving and driving an uninsured vehicle.	

Synopsis

On March 4, 2005, § 87(2)(b) left a message on the CCRB's call processing system in order to file a complaint regarding an incident that took place the night before. On March 3, 2005 at approximately 8:00pm, § 87(2)(b) and § 87(2)(b) were returning home from work in § 87(2)(b)'s vehicle, which is a white Escalade. § 87(2)(b) and § 87(2)(b) were in the Bronx on East 167th Street and Simpson Street when Officer Angel Vasquez and Lt. Deodat Urprasad saw them. Officer Vasquez and Lt. Urprasad had been provided with a picture of an individual wanted for a shooting that took place approximately a week and a half before the incident, and Officer Vasquez noticed that the vehicle matched the description. Officer Vasquez attempted to pull up next to § 87(2)(b) to see if he matched the description of the shooter but the traffic light turned green and § 87(2)(b) took off at a high rate of speed. Lt. Urprasad instructed Officer Vasquez to pull § 87(2)(b) over (allegation A) to conduct an investigation.

§ 87(2)(b) pulled over and Officer Vasquez approached the driver's side window, while Lt. Urprasad approached the passenger side. Officer Vasquez requested § 87(2)(b)'s license and registration several times but § 87(2)(b) refused to cooperate until Officer Vasquez informed him of the reason for stopping him. Lt. Urprasad, who was on the passenger side, observed § 87(2)(b) fidgeting and instructed § 87(2)(b) to exit the vehicle several times but § 87(2)(b) allegedly, did not comply. Lt. Urprasad drew his weapon and pointed it at § 87(2)(b) (allegation B) and instructed him to get out of the vehicle, at which time § 87(2)(b) complied. Lt. Urprasad allegedly instructed § 87(2)(b) to turn the "fucking car off" (allegation C). § 87(2)(b) complied and exited the vehicle as well. As § 87(2)(b) and § 87(2)(b) stood at the rear of the vehicle, a friend of § 87(2)(b)'s, by the name of § 87(2)(b) approached them and asked the officers what was going on. Officer Gwendolyn Corbalis, who responded to Lt. Urprasad's call for assistance, allegedly searched § 87(2)(b) (allegation D). § 87(2)(b) and § 87(2)(b) were subsequently arrested and taken to the 41st Precinct where they were released with summonses (allegations E-H).

§ 87(2)(g)
[REDACTED]

Summary of Complaint

§ 87(2)(b)
§ 87(2)(b) contacted IAB and the CCRB on March 4, 2005 and filed a complaint regarding the incident that took place on March 3, 2005 (encl. 6 & 71-7c). He was interviewed by the CCRB on April 14, 2005 (encl. 9a-9f). His statements were consistent and have since been combined. He drives a 1999 white Escalade, with tinted windows. The rear windows are darker than the front windows, however the front tints are legal.

§ 87(2)(b) was returning to the Bronx from Manhattan on March 3, 2005 between 7:30pm-8:00pm with his friend, § 87(2)(b). He traveled on the FDR and then got on the Bruckner Expressway, heading northbound to go home. When he got to Hunt's Point Avenue he made a left and noticed that a marked patrol car was following him. Hunt's Point Avenue turns into 163rd Street so he made a right on Southern Blvd; he made sure to put on his turn signal. He traveled northbound on Southern Blvd, along the yellow line, because of the number of double-parked cars. He continued on Southern Blvd

under 30 mph because the patrol car was following him. § 87(2)(b) told § 87(2)(b) that they were being followed by a police officer but § 87(2)(b) told him not to worry about it. At the corner of Westchester Avenue and Southern Blvd, there was a car in the left lane that wanted to make a left hand turn. § 87(2)(b) signaled and changed lanes to his right. He passed the car that was going to make the left hand turn, then signaled and returned to the left lane.

He continued traveling on Southern Blvd and saw a taxicab did the same thing behind § 87(2)(b) (he observed this from his rear-view mirror). The taxicab, however, did so without signaling and cut off the patrol car, and then made a right on Westchester Avenue. The patrol car continued behind § 87(2)(b) which concerned him because “he knew the police officers were going to bother him.” § 87(2)(b) told § 87(2)(b) not to worry about it. When he reached the corner of 167th Street, he signaled and made a left hand turn. As soon as he made the left hand turn, the patrol car signaled to § 87(2)(b) to pull over. § 87(2)(b) immediately pulled over, parked the car and lowered his window. The police officer (identified by § 87(2)(b) as Officer Vasquez from his shield) approached him and requested his license and registration. § 87(2)(b) asked the officer why he was pulled over but Officer Vasquez replied, “Just give me your license and registration.” § 87(2)(b) took off his seatbelt but asked Officer Vasquez what he did to get pulled over. Officer Vasquez said, “Just give me your license and registration” a little more forceful. § 87(2)(b) told him he was going to comply but wanted to know why he was pulled over. The other officer (identified by § 87(2)(b) as Lt. Urprasad; § 87(2)(b) recognized him from his job as § 87(2)(b)) was standing by the passenger side window, but he did not say anything. When § 87(2)(b) asked Officer Vasquez for the third time why he was pulled over, Lt. Urprasad interjected and told § 87(2)(b) to give Officer Vasquez his license and registration. At that point, § 87(2)(b) told Lt. Urprasad that he was § 87(2)(b). Lt. Urprasad said something to § 87(2)(b) to the affect, “I don’t care who you work for” so § 87(2)(b) called him a “prick.”

Lt. Urprasad pulled out his gun and pointed it at § 87(2)(b) face. § 87(2)(b) did not know what to do at that point. Lt. Urprasad said, “Turn the fucking car off and give him your license and registration.” § 87(2)(b) told him he was going to comply and tried to lock the doors but Lt. Urprasad opened the door and pulled § 87(2)(b) out of the car by his right arm before he got a chance to lock the doors. § 87(2)(b) and Lt. Urprasad walked to the back of the car so § 87(2)(b) followed because he wanted to see everything. Officer Vasquez told § 87(2)(b) if he had complied, “none of this would have happened.” § 87(2)(b) said he would have complied as soon as he told him why he was pulled over. § 87(2)(b) was upset and told Officer Vasquez that he had a feeling they were going to be harassed because he had watched the officers follow them for four blocks. Officer Vasquez told him to calm down but § 87(2)(b) said, “I’m not going to calm down shit.” When he walked to the back, he saw § 87(2)(b) offer Lt. Urprasad his credentials but Lt. Urprasad threw them onto the ground. § 87(2)(b) was not handcuffed at this point. § 87(2)(b) said, “Hey, what the fuck? You are being a fucking prick.” Lt. Urprasad spun § 87(2)(b) around and handcuffed him. § 87(2)(b) was about 6-7 feet away from Lt. Urprasad and said, “Hey what’s going on?” § 87(2)(b) told § 87(2)(b) to be quiet but he didn’t listen. Lt. Urprasad told him to get against the car and decided to handcuff § 87(2)(b) “for his own protection” and conducted a quick pat down. From this moment on, Officer Vasquez remained quiet throughout the rest of the incident.

§ 87(2)(b) told § 87(2)(b) “this guy’s a dick” referring to Lt. Urprasad. A friend of § 87(2)(b) named § 87(2)(b) saw the police officers handcuffing them and asked her what had happened. Lt. Urprasad called for backup and when the other unit arrived with another lieutenant inside (which was identified through the investigation as Officer Stephen Nelson) and § 87(2)(b) was sat in the back seat of their car. § 87(2)(b) described Officer Nelson as a pudgy, white male, approximately 5’5”, with a mustache, balding but he was wearing an all blue uniform and his partner (identified through the investigation as Officer Gwendolyn Corbalis) as a white female, with blonde hair and blue eyes. § 87(2)(b) thought he was a lieutenant because § 87(2)(b) recognized him and identified him as a lieutenant. They arrived in an all blue unmarked car. The handcuff on his left hand was really tight and he asked the officer if they could loosen the handcuffs but he said no. § 87(2)(b) sustained a small bruise and laceration because of the handcuffs but he did not take a picture of it because “that was fine.” § 87(2)(b) asked Officer Nelson what had happened but he did not know. Officer Nelson

approached § 87(2)(b) (last name unknown) and searched her even though she was approximately 15 feet away from the incident and was not involved in any way. § 87(2)(b) asked § 87(2)(b) to call § 87(2)(b) (last name known) so that § 87(2)(b) could take his car and park it in the parking lot. § 87(2)(b) called § 87(2)(b) but when § 87(2)(b) arrived at the scene the lieutenant told § 87(2)(b) to step away from the car. The lieutenant told § 87(2)(b) that the Escalade was going to the precinct as well. § 87(2)(b) backed away from the patrol car that § 87(2)(b) was in and tried to get answers from the police officers on the scene but was not able to find out anything.

They were transported to the precinct and placed in a cell. § 87(2)(b) was really upset at this point because he was innocent and felt “totally violated.” A third lieutenant (Lt.#3: black male) approached § 87(2)(b) and asked him what happened. § 87(2)(b) told Lt.#3 exactly what happened. Lt.#3 said, “Okay, no problem” and walked away. § 87(2)(b) did not see him after that. Officer Vasquez also entered the holding cell area and tried to tell § 87(2)(b) and § 87(2)(b) that he was going to talk to “some guy” and try to get them off with a summons. But § 87(2)(b) did not understand why they were going to get a summons when they hadn’t done anything. Officer Vasquez told § 87(2)(b) and § 87(2)(b) to take it easy but at this point § 87(2)(b) was calm. He was still angry but he remained quiet. Lt. Urprasad never came into the holding cell area, but § 87(2)(b) was able to see him from a distance. Officer Vasquez got § 87(2)(b) and § 87(2)(b) out of the cell approximately 1 ½-2 hours later. Officer Vasquez stated he was going to go to court and had the judge reduce the payment. He also stated that none of this would have happened if he would have complied and handed him the paperwork. § 87(2)(b) felt as if Officer Vasquez blamed Lt. Urprasad for wanting to stop them. After that conversation, Officer Vasquez asked § 87(2)(b) if he always drove in that manner and § 87(2)(b) replied that he did. It was at that time that Officer Vasquez informed him that he had almost hit a lady, who was standing near the curb, on Alders Avenue, between Westchester and 163rd Street. However, Alders Avenue would have been before the maneuver that § 87(2)(b) made on Westchester Avenue. Officer Vasquez also told him that there was a shooting and the perpetrator had a white suburban-type vehicle, but he never showed him any paperwork to confirm it.

§ 87(2)(b) respects police officers and understands that they have a family and have to go home at the end of the day but he also feels that police officers can not treat everyone as a criminal just because they wear their hat to the side.

§ 87(2)(b) was interviewed by the CCRB on April 11, 2005 (encl. 8a-8f). On March 3, 2005 at approximately 8:00pm, § 87(2)(b) friend, § 87(2)(b) picked him up after work in his white Cadillac Escalade. The Cadillac has tinted windows, except for the driver’s side window. The passenger side window was lightly tinted. § 87(2)(b) is a § 87(2)(b) and § 87(2)(b) works § 87(2)(b). They went shopping at downtown Manhattan and started heading back home on Bruckner Blvd. § 87(2)(b) was traveling in the direction of Hunt’s Point Ave when he noticed a marked patrol car was following him. § 87(2)(b) and § 87(2)(b) continued on Southern Boulevard, traveling less than 30 mph, with both of their seatbelts on. On Southern Boulevard, there are always cars that are double-parked. § 87(2)(b) was in the left lane when he changed lanes, with his indicator on, to pass a vehicle that was in the left lane attempting to make a left turn on Westchester Avenue. He continued on Southern Blvd and noticed that a taxicab cut off the patrol car, without signaling, but the officers did not stop him. The officers followed them for approximately 5-6 blocks before stopping them.

§ 87(2)(b) were going to make a left on 167 Avenue and Southern Blvd when the officers turned on their lights and sped up to catch them. § 87(2)(b) pulled over on 167th Ave. and Simpson. Officer Vasquez (Hispanic male, approximately 5’7”-5’8” with light brown hair) approached the driver’s side and Lt. Urprasad (Gianese male in uniform, with salt and pepper hair, approximately 5’10”) approached the passenger side. § 87(2)(b) recognized Officer Vasquez from § 87(2)(b). Officer Vasquez also recognized § 87(2)(b) but did not say anything because Officer Vasquez was following Lt. Urprasad’s lead.

Officer Vasquez asked § 87(2)(b) for his license and registration but § 87(2)(b) wanted a reason for being stopped before he gave him his license and registration. Officer Vasquez asked him for his license and registration several times, and each time § 87(2)(b) asked why he was being stopped. § 87(2)(b) had the paperwork in his hands but did not want to give it to him until he told him why he was being stopped. During that time, § 87(2)(b) lowered the passenger side window, because it was tinted, out of courtesy. While § 87(2)(b) and Officer Vasquez went back and forth, § 87(2)(b) told Lt. Urprasad that he was on the job. Lt. Urprasad asked § 87(2)(b) whom he worked for and he informed the lieutenant that he worked for § 87(2)(b). § 87(2)(b) was irritated that he was being stopped for no reason after Officer Vasquez acted “snotty” towards him.

Lt. Urprasad pulled out his gun, a silver or gray handgun (possibly a 9mm), and pointed it at § 87(2)(b) face. He instructed § 87(2)(b) to shut off the truck and hand Officer Vasquez his papers. § 87(2)(b) told him to hold on because he only had two hands. § 87(2)(b) told Lt. Urprasad to “watch it with that shit” (referring to the gun). § 87(2)(b) did not move before the lieutenant pulled his gun out. He put his hands on his laps and did not move, except for moving his heads. The lieutenant was able to pull him out of the car because § 87(2)(b) had removed his seatbelt a little while earlier to show the officer his license. Lt. Urprasad stood there for a while and then got “pissed off,” opened the car door and “yanked” him out of the car. § 87(2)(b) called him a “prick” because he was showing him courtesy and respect and the lieutenant was not showing him any courtesy. Lt. Urprasad “flipped out” and said, “Oh yeah, now I’m going to lock you up.” He was trying to verbally intimidate him but § 87(2)(b) ignored him. He told him to do what he had to do so Lt. Urprasad handcuffed § 87(2)(b) without incident, and escorted him to the back of the truck. § 87(2)(b) managed to take out his wallet, from his back pants pocket, and presented him with his § 87(2)(b). Lt. Urprasad looked at his ID and threw it on the floor, saying, “This is what that means to me.” Lt. Urprasad asked him if he had anything and § 87(2)(b) told him that he had his working knife on him. He pulled the knife out of your back pants pocket and handed it to Lt. Urprasad. Lt. Urprasad then frisked and searched § 87(2)(b) with his permission.

§ 87(2)(b) got out of the car on his own and walked to the back of the truck. He saw that Lt. Urprasad had thrown § 87(2)(b) identification on the floor and asked him why he handcuffed § 87(2)(b). § 87(2)(b) “That is when the officer got stupid with him.” § 87(2)(b) said, “You know what, my friend is right. You are a dick.” That is when they handcuffed § 87(2)(b). § 87(2)(b) also had a working knife, which he uses for his construction job. § 87(2)(b) did not see him being frisked or searched but imagined that he was by Officer Vasquez. § 87(2)(b) complained that the handcuffs were on too tight but the officers ignored him and did not loosen the handcuffs.

While they were standing there, a female (C#1) that is known to § 87(2)(b) from the neighborhood and now works at § 87(2)(b), was walking by and saw them in handcuffs. C#1 approached § 87(2)(b) who was standing by the driver’s side of the truck, and asked him what had happened. § 87(2)(b) could not see C#1 because he was on the other side of the truck but he believes the officers “attacked” her. By “attacked” he meant that the officers checked her to make sure she was okay. § 87(2)(b) also believes that she was handcuffed but he could not see that either. § 87(2)(b) would have a better recollection of that because he was able to witness the interaction between the officers and C#1. After § 87(2)(b) and § 87(2)(b) were in the patrol car, they released her.

Another marked patrol car arrived 15-20 minutes later. PO#1 (tall, skinny black guy) and PO#2 (short, white male, with a “DA” haircut, hair slicked back, with a mustache) transported § 87(2)(b) to the precinct and § 87(2)(b) was escorted by Officer Vasquez and Lt. Urprasad. § 87(2)(b) recalled PO#1 and PO#2 from previous jobs but he did not recall their names. Officer Vasquez told § 87(2)(b) that they were going to release them but § 87(2)(b) did not believe him because they still did not give § 87(2)(b) or § 87(2)(b) a reason to have stopped them. At the precinct, Officer Vasquez came to the cell and told § 87(2)(b) that he was going to try to get him out as long as § 87(2)(b) calmed down. After approximately an hour and a half he returned and said that his sergeant wanted to press charges. After they were released from the cell, they were issued 8 summonses. They were issued summonses for no registration, disorderly conduct, and for possessing a working utility knife.

Outside of the precinct, Officer Vasquez told § 87(2)(b) and § 87(2)(b) that they stopped them because there was a white truck that was involved in a police shooting at Hunt's Point. Officer Vasquez told him that he could go to court and help them dismiss the fines but § 87(2)(b) did not want to take the offer because they "violated them" and stopped them for no reason. They filed a complaint with the CCRB and IAB.

Results of Investigation

Officer Angel Vasquez

Officer Vasquez was interviewed by the CCRB on June 2, 2005 (encl. 12a-12b). Officer Angel Vasquez worked from 3:00pm to 11:35pm as Lieutenant Urprasad's operator. He was dressed in uniform and assigned to patrol car #2451. He made the following entries in his memo book (encl. 10a-10e): "1950 car stop E 167 St & Simpson St. 1957 2 under from car stop. 2000 5 "C" summons written to § 87(2)(b) (x2) 1) dis con, 2) knife >4' & § 87(2)(b) (x3) 1) dis con, 2) reckless driving 3) unins veh."

There had been a shooting on February 20, 2005 before this incident and Officer Vasquez was given a general description of a light-skinned, male Hispanic operating a white 4x4 (encl. 10e). He saw a vehicle that fit the description of the shooter and spoke with Lt. Urprasad, who also thought the vehicle could be the vehicle involved in the shooting but they were not sure if the driver matched the description. Officer Vasquez attempted to go around the car to take a look at the driver when the driver, later identified as § 87(2)(b) took off at a high rate of speed the minute the traffic light changed. § 87(2)(b) was traveling northbound on Southern Blvd, which is a business district, got into the southbound lane in order to get around a vehicle that was double-parked, and almost hit a pedestrian. Lt. Urprasad instructed Officer Vasquez to pull § 87(2)(b) over at that point, but waited to pull him over at the next block just in case he was the shooter.

Officer Vasquez did not follow § 87(2)(b) because he was traveling in the same direction as § 87(2)(b). He just wanted to pull up to him to check to make sure he was not the shooter and the only reason they stopped him was because he almost hit a pedestrian.

Officer Vasquez pulled him over and approached § 87(2)(b)'s window. The minute he approached him, § 87(2)(b) was very belligerent and nasty. He wanted to know why he was stopped and Officer Vasquez informed him that he almost struck a pedestrian. § 87(2)(b) said, "I wasn't driving reckless, you're a fucking asshole." He also argued that the only reason why Officer Vasquez stopped him was because he had a nice vehicle. Officer Vasquez requested his documentation two or three more times but § 87(2)(b) did not comply. At that time, the passenger, later identified as § 87(2)(b) got into a discussion with Lt. Urprasad and called him a "dick." Officer Vasquez never heard § 87(2)(b) inform Lt. Urprasad that he worked for § 87(2)(b). Officer Vasquez never learned who he was employed by until he got his identification at the stationhouse.

At this point, Officer Vasquez did not know if § 87(2)(b) was the suspect in the shooting so he called for backup. As the backup arrived, possibly Officer Nelson and Officer "Cobi," § 87(2)(b) got out of the vehicle and Officer Vasquez could not see what happened on the other side of the car because the car had dark tinted windows. Officer Vasquez did not know what happened between § 87(2)(b) and Lt. Urprasad that resulted in § 87(2)(b) exiting the vehicle. He never saw Lt. Urprasad draw his weapon or point it at § 87(2)(b) when § 87(2)(b) exited the vehicle. At that point, Officer Vasquez told § 87(2)(b) to get out of the vehicle and escorted him to the back of the car to join Lt. Urprasad. Officer Vasquez still had not obtained § 87(2)(b)'s documentation at this point. § 87(2)(b) and § 87(2)(b) were frisked, at which point § 87(2)(b)'s knife was recovered. Officer Vasquez described § 87(2)(b)'s knife as a gravity knife, which is illegal.

Officer Vasquez recalled a female approaching them on the scene but she did not have any involvement with either of the officers, § 87(2)(b) or § 87(2)(b). She may have said something but Officer Vasquez could not confirm it because it became a little chaotic when they continued yelling at the officers.

Officer Vasquez did not recall a crowd gathering because he was focused on § 87(2)(b) Lt. Urprasad instructed Officer Vasquez to handcuff § 87(2)(b) and § 87(2)(b) and transport them to the precinct.

Officer Vasquez transported § 87(2)(b) and Officer Nelson transported § 87(2)(b) to the stationhouse. They were presented to the desk officer and searched. Since Officer Vasquez was assigned the arrests, he went to the holding cell area and told § 87(2)(b) and § 87(2)(b) that he was going to try to get them off with a couple of summonses if they calmed down. He informed them, "There was no reason for all of this."

Neither § 87(2)(b) nor § 87(2)(b) requested medical attention from Officer Vasquez. He did not see Lt. Urprasad pull § 87(2)(b) out of the front seat or curse at § 87(2)(b).

Lieutenant Deodat Urprasad

Lieutenant Urprasad was interviewed by the CCRB on June 8, 2005 (encl. 13a-13c). On March 30, 2005 Lieutenant Deodat Urprasad worked from 2:45pm until 11:20pm. He was assigned to be the third platoon commander and was partnered with Officer Angel Vasquez. They were dressed in uniform and assigned to a marked patrol car. He made the following entries in his memo book (encl. 12a-12b): "1950 car stop E 167 St and Simpson. 2 under from car stop by PO Vasquez."

Officer Vasquez, the operator of the patrol car, observed a male Hispanic (later identified as § 87(2)(b)) driving a white Escalade. According to Officer Vasquez, § 87(2)(b) fit the description of a perpetrator wanted in a shooting within the confines of the 41st Precinct. The description of the shooter was a male Hispanic driving a white 4 x 4. Officer Vasquez asked Lt. Urprasad if § 87(2)(b) fit the description but Lt. Urprasad was not sure. Officer Vasquez decided to pull up next to the Escalade to get a better view of § 87(2)(b). As soon as they tried to pull up next to the vehicle, the traffic light turned green and § 87(2)(b) took off at "a high rate of speed."

Officer Vasquez followed the vehicle, heading southbound on Southern Blvd. He was going at a high rate of speed and at one point, traveled southbound, on the northbound lane before changing back to the southbound lane and almost hitting a pedestrian. Lt. Urprasad described Southern Boulevard as being a very busy, commercial area in the confines of the precinct. Since it was near closing time, there were a lot of double-parked cars. There were double-parked cars on the southbound lanes when § 87(2)(b) went into the northbound lane, to get around a double-parked car, at a high rate of speed. Officer Vasquez traveled approximately 40-50 mph, for approximately 4-5 minutes, to catch up to § 87(2)(b). Lt. Urprasad was asked how was it possible that he and Officer Vasquez were driving 40-50 mph, in a busy street, when the southbound lane is completely blocked due to the double-parked cars, and cars were traveling in the opposite direction. His response was, "The cars were obviously coming and I'm surprised the no car went into him. There weren't a lot of double-parked cars but there were more than one." Although there is only one lane in each direction, Lt. Urprasad stated there was enough room to drive around the double-parked cars, and remain in the southbound lane.

Officer Vasquez and Lt. Urprasad decided to stop § 87(2)(b) but followed him until 167th Street and Simpson before they stopped him because of the traffic on Southern Blvd. Officer Vasquez approached the driver and Lt. Urprasad approached the passenger side. The vehicle had tinted windows making it very dark for the officers to see inside the vehicle. The windows were lowered maybe half way and Lt. Urprasad did not recall that § 87(2)(b) or § 87(2)(b) lowered the window. Lt. Urprasad did not recall whether he asked them to lower the window or whether they turned on the interior light.

As soon as the officers approached, Lt. Urprasad heard the driver cursing at Officer Vasquez. Officer Vasquez asked § 87(2)(b) for his license and registration at least three times, but he refused to provide the documents. Lt. Urprasad did not recall what § 87(2)(b) was saying to Officer Vasquez but recalled that he was not asking him anything. Lt. Urprasad instructed § 87(2)(b) to give Officer Vasquez his license and registration at which time, the passenger, later identified as § 87(2)(b) called Lt. Urprasad a "fucking asshole in a white shirt." Lt. Urprasad did not recall § 87(2)(b) saying

anything else to him nor did he recall asking § 87(2)(b) for his license. Lt. Urprasad could not see § 87(2)(b) hands because the car was very dark inside. § 87(2)(b) and § 87(2)(b) were fidgeting in the car and Lt. Urprasad could not see their hands. When asked to elaborate how § 87(2)(b) and § 87(2)(b) were fidgeting, he responded, “Well first of all, they were moving around. I couldn’t see their hands. They had tinted windows. Escalade is a high vehicle so you can’t really see into the car. You have one person refusing to give his license and registration and are moving around in the vehicle. The driver is moving around inside the vehicle, and if this was the actual shooter, it is possible there is a gun in there.” Lt. Urprasad continued by saying, “They were moving around and I could not see their hands.” § 87(2)(b) was acting belligerent, refusing to provide his license and registration.

Lt. Urprasad decided to have § 87(2)(b) to get out of the vehicle because he could not see his hands and he feared for his safety. He asked § 87(2)(b) to exit the vehicle at least two times but § 87(2)(b) just looked at him. Lt. Urprasad removed his weapon from his holster and pointed it at § 87(2)(b) before he told him to exit the car. § 87(2)(b) hesitated and exited the vehicle and Officer Vasquez requested that a back-up unit respond. When he saw that § 87(2)(b) did not have anything in his hands, he re-holstered his weapon and had § 87(2)(b) turn around. He does not recall if Officer Vasquez removed his weapon or not. Lt. Urprasad did not recall at what time § 87(2)(b) exited the vehicle because his view was blocked. Back-up arrived when § 87(2)(b) exited the car. Lt. Urprasad did not recall if he or the back up officers handcuffed § 87(2)(b). Lt. Urprasad believes that Officer Nelson and Officer Corbalis arrived on the scene.

Lt. Urprasad searched § 87(2)(b) after he exited the vehicle because “it is procedure to search an individual who is going to be handcuffed.” After further questioning, Lt. Urprasad stated that he frisked § 87(2)(b) on the scene and that the frisk did not reveal anything. Before Lt. Urprasad frisked him, he asked him if he had anything in his pockets, which “is standard procedure” but § 87(2)(b) denied having anything. Lt. Urprasad did not recall whether § 87(2)(b) was frisked but assumed that he was because, “its standard procedure.” Lt. Urprasad did not recall who handcuffed § 87(2)(b) or whether he transported § 87(2)(b) or § 87(2)(b) to the Precinct.

At the stationhouse, § 87(2)(b) and § 87(2)(b) were routinely frisked at the desk and entered into the command log. At that time, § 87(2)(b) revealed to Lt. Urprasad that he was § 87(2)(b). Lt. Urprasad asked § 87(2)(b) to present his shield and identification card proving that he was § 87(2)(b). Lt. Urprasad never recalled recovering a utility knife from § 87(2)(b) or searching § 87(2)(b).

Lt. Urprasad never intended on issuing them a summons, he was mainly concerned in verifying that § 87(2)(b) was not the suspect in the shooting. Because § 87(2)(b) was § 87(2)(b), the officers decided to issue § 87(2)(b) a summons instead of “putting him through the system.” Lt. Urprasad stated that § 87(2)(b) could have been put through the system because he was driving reckless and erratically in a commercial area.

Lt. Urprasad stated, “It was my discretion to issue § 87(2)(b) a summons.” When asked if it was also his discretion to issue § 87(2)(b) a summons, he responded, “Yes.” He instructed Officer Vasquez to issue them a summons so that they would not have to be processed.

Lt. Urprasad recalled that § 87(2)(b) called him “a dick” on the scene. He stated, “After a while, when you hear the curse word, you go straight ahead.” As soon as we approached the vehicle, they started cursing. “I was dumb founded that he was § 87(2)(b). He should be ashamed of himself.” Lt. Urprasad was asked if either § 87(2)(b) or § 87(2)(b) asked why they were stopped. He responded that he “can’t remember.” Lt. Urprasad did not recall § 87(2)(b) § 87(2)(b). Lt. Urprasad did not recall anyone approach him, Officer Vasquez, § 87(2)(b) or § 87(2)(b) while on the scene. The Escalade was driven back to the precinct and eventually released to § 87(2)(b) when he was released with the summons.

Officer Stephen Nelson and Officer Gwendolyn Corbalis

On March 3, 2005 Officer Nelson and Officer Corbalis worked together from 4:00pm to 12:00am. They were dressed in uniform and assigned to a marked vehicle. Officer Nelson made the following entries in his memo book (encl. 14a-14b): "1950 – 85 1Lt 197/Simpson. 1956 trans 1 41 Pct." Officer Corbalis made the following entries in her memo book (encl. 16a-16b): "85 Lt. 167 & Simpson. Transported one male to precinct. Searched vehicle. 98." They were interviewed on the CCRB on August 2, 2005 (encl. 15a-15b & 17a-17b) and their statements have been combined.

Officer Nelson and Officer Corbalis received a call from Lt. Urprasad requesting assistance. When they responded to the call, Officer Nelson and Officer Corbalis found two males (identified by the CCRB as § 87(2)(b) and § 87(2)(b) standing outside of their vehicle. § 87(2)(b) and § 87(2)(b) were placed into custody and transported to the 41st Precinct. Officer Corbalis did not recall any other details surrounding the incident.

Officer Nelson did not recall if § 87(2)(b) and § 87(2)(b) were handcuffed when they arrived on the scene. Officer Nelson recognized § 87(2)(b) as § 87(2)(b). Officer Nelson did not recall if Lt. Urprasad or Officer Vasquez knew that § 87(2)(b) was § 87(2)(b) or if they even recognized him. Officer Nelson did not know why § 87(2)(b) and § 87(2)(b) were stopped but knew they were being arrested for disorderly conduct. Lt. Urprasad did not explain what happened to Officer Nelson or Officer Corbalis, he only told them to transport § 87(2)(b) to the precinct. At no time did Lt. Urprasad inform Officer Nelson that he was in fear for his safety.

NYPD Documents

Roll Call

A copy of the roll call for the 41st Precinct was obtained (encl. 18a-18b). The roll call confirmed that Lt. Urprasad was assigned to be the platoon commander on the date of the incident from 2:45pm to 11:30pm. Officer Vasquez was assigned to be the lieutenant's operator from 12:00pm to 8:35pm. Finally, Officer Corbalis and Officer Nelson were assigned to sector FI during the same tour.

Command Log

A copy of the command log for the 41st Precinct was obtained (encl. 19a-19b). Two arrest entries were made at 8:05pm by Officer Vasquez; one for § 87(2)(b) and the other for § 87(2)(b). They were charged with disorderly conduct and then released with a summons at 9:35pm.

Summons

Summons § 87(2)(b) (encl. 20a) and § 87(2)(b) (encl. 20b) was issued to § 87(2)(b) on March 3, 2005 at 8:00pm by Officer Vasquez for disorderly conduct [PL 240.20 (3)] and for possession of a knife more than 4 inches. Officer Vasquez also issued § 87(2)(b) three summonses [§ 87(2)(b) (encl. 20c), § 87(2)(b) (encl. 20d) and § 87(2)(b) (encl. 20e)]; one for disorderly conduct [PL 240.20 (3)], one for reckless driving (VTL 1212) and the other for an uninsured vehicle [VTL 319 (1)].

Disposition of Summonses

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

DMV

§ 87(2)(b)'s DMV record (encl. 21) has no indication that § 87(2)(b)'s vehicle was uninsured. § 87(2)(b)

Civilians' CCRB History

This is § 87(2)(b)'s first CCRB complaint, however it is § 87(2)(b)'s second. § 87(2)(b)

Officers' CCRB History

Neither Lt. Urprasad nor Officer Corbalis have any substantiated allegations in their CCRB history (encl. 2 & 3a-3b).

Conclusions and Recommendations

Undisputed Facts

§ 87(2)(g) § 87(2)(b) and § 87(2)(b) were occupants in § 87(2)(b)'s white Escalade in the vicinity of East 167th Street and Simpson Street in the Bronx. Officer Vasquez and Lt. Urprasad stopped § 87(2)(b) and § 87(2)(b) and Officer Vasquez requested § 87(2)(b) license and registration. § 87(2)(b) refused to provide Officer Vasquez with his documents until Officer Vasquez informed him why he was stopped. The situation escalated and § 87(2)(b) and § 87(2)(b) were taken out of the vehicle. They were subsequently handcuffed and transported to the precinct where they were issued summonses and released.

Credibility

§ 87(2)(g) [REDACTED]

Allegations Not Pled

§ 87(2)(g) [REDACTED]

Allegation A: Lieutenant Deodat Urprasad stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Officer Vasquez and Lt. Urprasad observed a white Escalade, driven by § 87(2)(b) and § 87(2)(b) which fit the description of a vehicle involved in a shooting on February 20, 2005. Officer Vasquez, who was the operator at the time of the incident, attempted to pull up next to the Escalade to get a better look at the driver. Officer Vasquez was unable to catch up because § 87(2)(b) took off at a "high rate of speed" after the traffic light turned green. Lt. Urprasad subsequently instructed Officer Vasquez to pull over the vehicle to ensure that the driver was not the wanted individual. Since Officer Vasquez acted on his supervisor's instructions to pull the vehicle over, the allegation will not be pled against Officer Vasquez. According to § 87(2)(b) and § 87(2)(b) § 87(2)(b) was following all the vehicle traffic laws and did not understand why they were pulled over. § 87(2)(g)

[REDACTED]

Allegation B: Lieutenant Deodat Urprasad pointed his gun at § 87(2)(b)

Lt. Urprasad and Officer Vasquez approached the vehicle and Officer Vasquez asked for § 87(2)(b)'s license and registration. § 87(2)(b) who admitted that he was upset for being

stopped for no reason, questioned Officer Vasquez' reasons for stopping him. Meanwhile, Lt. Urprasad was standing next to § 87(2)(b) window, watching § 87(2)(b). According to § 87(2)(b) since he is aware of how police officers' procedures when stopping a vehicle, he lowered his window and maintained his hands on his laps. § 87(2)(b) claimed that he informed Lt. Urprasad that he was § 87(2)(b) but Lt. Urprasad denied it. Lt. Urprasad testified that § 87(2)(b) and § 87(2)(b) were fidgeting in the car and, given the time of the incident and the fact that the car had tinted windows, he could not see their hands. Lt. Urprasad feared that § 87(2)(b) could have been the shooter and could have had a weapon in the vehicle. Lt. Urprasad feared for his safety and instructed § 87(2)(b) to exit the vehicle at least two times but § 87(2)(b) refused to comply. At that time, Lt. Urprasad pointed his weapon at § 87(2)(b) and instructed him to exit the vehicle, to which § 87(2)(b) subsequently complied. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation C: Lieutenant Deodat Urprasad spoke obscenely and/or rudely to § 87(2)(b)
§ 87(2)(b) alleged that Lt. Urprasad pointed his weapon at § 87(2)(b) and then instructed him to "turn the fucking car off." Lt. Urprasad denied ever cursing at § 87(2)(b). Officer Vasquez and § 87(2)(b) stated they did not hear Lt. Urprasad make that statement. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation D: Officer Gwendolyn Corbalis searched § 87(2)(b)
§ 87(2)(b) alleged that a female officer, identified by the CCRB as Officer Corbalis, searched § 87(2)(b). Officer Corbalis did not recall any details of the incident and was unable to testify regarding this allegation. Lt. Urprasad did not recall anyone approaching the scene, however Officer Vasquez recalled that a female approached the scene but claimed that he did not have any involvement with her. Without the victim's statement, the CCRB is unable to make an affirmative finding regarding this allegation. § 87(2)(b) did not know § 87(2)(b)'s last name but he offered to forward the undersigned investigator's contact information so that she could contact the CCRB. However, as of this date, the CCRB has been unable to get a statement from § 87(2)(b). § 87(2)(g)

§ 87(2)(b)

Allegation E: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for disorderly conduct.

Allegation F: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for disorderly conduct.

While § 87(2)(b) and § 87(2)(b) were in the car, § 87(2)(b) told Lt. Urprasad that he worked for § 87(2)(b). § 87(2)(b) stated that he showed Lt. Urprasad respect by lowering his window, voluntarily, and putting his hands on his lap. Lt. Urprasad, however, pointed his gun at § 87(2)(b) got "pissed off" and had § 87(2)(b) exit the vehicle. § 87(2)(b) was admittedly upset and called Lt. Urprasad a "prick" after he got out of the vehicle because he was showing the lieutenant courtesy and the lieutenant was not showing § 87(2)(b) any courtesy. According to § 87(2)(b) Lt. Urprasad "flipped out" and told § 87(2)(b) he was going to be arrested. § 87(2)(b) showed Lt. Urprasad his § 87(2)(b) identification but Lt. Urprasad threw it on the floor. When § 87(2)(b) saw that Lt. Urprasad had thrown § 87(2)(b) identification on the floor, he agreed with § 87(2)(b) and called Lt. Urprasad "a dick". Lt. Urprasad recalled § 87(2)(b) calling him "a dick" on the scene and said, "After a while, when you hear the curse word, you go straight ahead." Lt. Urprasad said that § 87(2)(b) should have been "ashamed of himself" for acting the way he did, particularly because he works § 87(2)(b). § 87(2)(b) and § 87(2)(b) were eventually taken to the precinct and subsequently released with several summonses, one of which was a summons for Disorderly Conduct, Penal Law 240.20 (3). Disorderly conduct is defined in the Penal Law 240.20 (3) (encl. 1z) as follows: A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm,

or recklessly creating a risk thereof in a public place, he uses abusive or obscene language, or makes an obscene gesture.

§ 87(2)(g)

The Office of Administrative Trials and Hearings has examined this statute and consistently ruled that simple language, regardless of vulgarity and target, does not constitute a violation of this statute. OATH holds that disorderly conduct was created against “mob behavior involving ominous threats of injury” (*PD v Zisel, OATH Index 389/97, Sept. 17, 1997*) (encl. 1a-1n). The behavior covered under the statute includes fighting words and the attempt of congregating with other persons. Mere vulgarity has repeatedly been found as insufficient behavior to constitute a violation disorderly conduct. OATH based its decision on the finding of the Supreme Court in the City of Houston, Texas v Hill which states “[t]he freedom of individuals verbally to oppose or challenge police action is one of the principle characteristics by which we distinguish a free nation from a police state.” 482 U.S. 451, 462-3, 107 S. Ct. 2502, 2510 (1987). OATH judges have also found that officers improperly arrested Lisa Carrasquillo (*PD v Bernardini, OATH Index 1347-98 Sept 21, 1998*) (encl. 1o-1z) for disorderly conduct after she insulted a police officer with obscenities in a public street for issuing her a parking summons. ADL Rosemarie Maldonado writes that her “choice to express her anger in a vulgar and disrespectful manner warrants some rebuke” however in finding the officer’s arrest to be misconduct, she stated that Ms. Carrasquillo’s words were not intended to create a “risk of public alarm”.

§ 87(2)(g)

Courts have refused to uphold disorderly conduct convictions based purely on speech and have held Penal Law 240.20 unconstitutional when misused in such a manner. *People v Dietze*, 75 N.Y.2d 459 (Dist. Ct. Nassau Co. 1990) stressed that speech may not be punished unless it presents a “clear and present danger of some serious substantive evil.” § 87(2)(g)

Allegation G: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue a summons to § 87(2)(b) for possession of a knife longer than four inches.

After § 87(2)(b) was taken out of the vehicle, Lt. Urprasad asked § 87(2)(b) if he had anything on him before he frisked him. § 87(2)(b) informed Lt. Urprasad that he had his work knife on him, took it out of his back pocket and handed it to him. Lt. Urprasad then frisked § 87(2)(b) (with his permission), handcuffed him and transported him to the precinct. At the precinct, Lt. Urprasad instructed Officer Vasquez to issue § 87(2)(b) a summons for possessing a knife greater than four inches long. § 87(2)(g)

Allegation H: Lieutenant Deodat Urprasad instructed Officer Angel Vasquez to issue summonses to § 87(2)(b) for reckless driving and uninsured vehicle.

At the precinct, Lt. Urprasad instructed Officer Vasquez to issue § 87(2)(b) a summons for driving an uninsured vehicle and for reckless driving. The summonses are no longer public record and there is no indication on § 87(2)(b)'s driving record that his vehicle was uninsured. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: